

**RESOLUTION OF THE BOARD OF COUNTY COMMISSIONERS,
SAN MIGUEL COUNTY, COLORADO,
APPROVING AMENDMENTS TO THE LAND USE CODE FOR
PRIORITIZED HOUSING REVIEW**

Resolution No. 2026-22

WHEREAS, Proposition 123, approved by a statewide vote in November of 2022, created the Colorado State Affordable Housing Fund, and the state legislature have since enacted language to implement methods and timelines for ongoing qualification of projects for that funding; and

WHEREAS, in recognition of the significant housing needs of our County and Region, San Miguel County has made an affordable housing commitment per the provision of the law in C.R.S. § 29-32-105 (1); and

WHEREAS, an additional requirement of maintaining eligibility for resources through the Statewide Affordable Housing Fund per C.R.S. § 29-32-105 (2) is to create a "fast-track approval process" for qualified housing projects within each local governmental jurisdiction; and

WHEREAS, at the direction of the Board of County Commissioners, Planning staff has prepared a Land Use Code (LUC) amendment creating Section 3-15, Accelerated Housing Review, with associated amendments in Section 3-202F and Article 7, Definitions; and

WHEREAS, the draft amendment was referred to the County Manager, County Attorney, Deputy County Manager, County Building Official, County Housing Coordinator, Town of Mountain Village, Town of Norwood, Town of Ophir, Town of Sawpit, Town of Telluride, Bright Futures, Rural homes Project, San Miguel Regional Housing Authority, Telluride Association of Realtors, Telluride Foundation, Telluride Institute, Telluride R-1 School District, Telluride Housing Authority, Telluride Ski & Golf, and Strategic Stakeholders Roundtable members, and provided to the Colorado Department of Local Affairs for a courtesy review; and

WHEREAS, at a Planning Commission meeting held on Thursday, May 14, 2026 following its consideration of the proposed LUC Amendment, the CPC unanimously recommended approval of the Land Use Code Amendment, with an amendment to the definition of "Affordable Housing Eligible for Accelerated Housing Review," as set forth below; and

WHEREAS, in making its recommendation to the Board of County Commissioners, the CPC made the finding that the proposed amendment complies with the standards of Land Use Code Section 5-1802, Land Use Code Amendments, and is consistent with Land Use Code Section 1-4, Purposes of the Land Use Code; and

WHEREAS, a Public Hearing Notice for the proposed Land Use Code Amendment and the Board of County Commissioners meeting to be held on June 3, 2026 was published in the Telluride Times on May 14, 2026; and

WHEREAS, a list of the items included in the Public Hearing Record is attached to this resolution as Exhibit A; and

WHEREAS, the Board of Commissioners of San Miguel County, Colorado, considered this Land Use Code amendment, along with relevant evidence and testimony, at a public hearing on

Wednesday, June 3, 2026 and moved to change the name from "Accelerated Housing Review" to "Prioritized Housing Review," and to not include the Planning Commission's recommended change to the definition. Such amendments are incorporated into this resolution, below.

NOW, THEREFORE, BE IT RESOLVED that the Board of Commissioners of San Miguel County, Colorado, approves and adopts LUC Section 3-15, Prioritized Housing Review, as an amendment to the San Miguel County Land Use Code (LUC) as follows:

SECTION 3-15: PRIORITIZED HOUSING REVIEW

3-1501 Generally

In accordance with C.R.S. 29-32-105 (2) the County is required to provide a Prioritized Housing Review process (ninety (90)-day review) for projects in which fifty percent (50%) or more of the units meet the requirements of Section 3-1502 Applicability.

Additionally, Prioritized Housing Review applications shall adhere to all standards and procedures set in Article 3, Article 4, and Article 5 of this Code.

3-1502 Applicability

Projects that include development applications as identified in Figure 3.8 are eligible for Prioritized Housing Review process if they meet the following criteria:

- 3-1501A. Rental housing at or below one hundred twenty percent (120%) Area Median Income (AMI); or
- 3-1501B. For-sale housing at or below two hundred percent (200%) AMI; and
- 3-1501C. Costs less than thirty percent (30%) of household monthly income.

FIGURE 3.8

Development and Land Use Applications Eligible for Prioritized Housing Review

- Development Permit
- Building Permit
- Variance
- Special Use Permit
- Planned Unit Development Amendment
- Construction or engineering documents that may be required in the types of applications listed above
- Modifications of development permit, variance, and/or required construction or engineering documents following initial approval of a project with Affordable Housing Eligible for Prioritized Housing Review

Development and Land Use Applications *Ineligible* for Prioritized Housing Review

- Preliminary or Final Subdivision
- Initial Zoning and Rezoning
- Comprehensive Plan Amendment
- Appeals
- Planned Unit Development or Amendment that includes Rezoning or Subdivision
- Permits related to non-residential use

- Construction or engineering drawings that are not required as part of the Development and Land Use Application types listed herein

3-1503 Prioritized Housing Review Timeframe

Prioritized Housing Review applications shall be given priority review and decision making over other projects in the development or land use review process, as outlined in Article 3, and approved, approved with conditions, or denied within ninety (90) days of determination of completeness per Section 3-202C Determination of Application Completeness. The prioritized housing review period shall conclude upon the final action of the decision-making body. Applications shall be subject to allowable extensions per Section 3-1504.

- A. In the context of this Section, priority means giving preference to review of applications eligible for Prioritized Housing Review over review of non-eligible applications per the following:
 - I. If an application is continued by the decision-making body, the applicant shall be given preference on the next available hearing date.
 - II. Each application type indicated in Figure 3.8 shall be treated as a separate application, each with its own ninety (90) day review timeframe.
 - III. To the extent possible and reasonable, the applicant may be given concurrent review and approval of separate permits and applications for the same development. In such case, the total timeframe for the complete application package would meet the requirements of this section.
- B. An applicant may request an extension to the ninety (90) day Prioritized Housing Review, with a written request to the Planning Director per section 3-1504 Allowable Extensions.
- C. An applicant may opt out of the Prioritized Housing Review process at any time by submitting a written request to the Planning Director, at which point review of the project will no longer be given priority or preference over other non-eligible applications.
- D. All relevant review standards of Article 5 shall apply to projects being considered through the Prioritized Housing Review process.

3-1504 Allowable Extensions

- A. At the request of the applicant, a one-time ninety (90)-day extension may be provided for the applicant to address comments on the application from an agency that has approval authority like a service provider or state agency. The County Planning Director shall respond to the applicant in writing within five (5) business days acknowledging the extension request. Such extension shall be added to the end of the original ninety (90) -day period.
- B. To allow time to comply with a state law or court order, or to allow for a review period by an agency that requires review and approval of the project, the County may grant an extension until such a time as the conflict with state law or court order is resolved, or until review by an agency is complete and the applicant has had sufficient time to make any changes to the application as a result of that review. Upon resolution of the cause for the extension pursuant to this

subsection and submittal of any amended application materials, the ninety (90) - day review period or any extension period granted pursuant to subsections A or C of this Section shall resume.

- C. The County may request additional information or revisions to an application, extending the ninety (90) -day timeframe by thirty (30) days once additional information or revisions are received by the County. The County shall notify the applicant of the intent to extend the process. The applicant shall respond to the County within five (5) business days acknowledging the extension notice. Failure to respond within five (5) business days represents an acknowledgement of the extension notice. Such extension shall be added to the end of the original ninety (90) -day period.

3-1505 Affordable Housing Defined

For the purpose of this section, Affordable Housing Eligible for Prioritized Housing Review is defined as per Article 7.

BE IT FURTHER RESOLVED, Section 3-2 Overview of Development Review process is amended as follows:

(Additions are shown as underlined. Deletions are shown in ~~strike-through~~. *** indicates text preceding and/or following the amended text that is not shown and is unchanged.)

Section 3-2 Overview of Development Review Process

3-202F Review of Application

V. Affordable Housing eligible for Prioritized Housing Review, as defined in Article 7 – Definitions, shall be reviewed pursuant to Section 3-15 Prioritized Housing Review, as well as any other applicable sections of the Land Use Code.

BE IT FURTHER RESOLVED, Article 7, Definitions is amended to add a definition for Affordable Housing Eligible for Prioritized Housing Review as follows:

(Additions are shown as underlined. Deletions are shown in ~~strike-through~~. *** indicates text preceding and/or following the amended text that is not shown and is unchanged.)

Affordable Housing Eligible for Prioritized Housing Review

Residential dwelling units that are permanently deed restricted to be affordable to qualifying households. AMI ranges are tied to the initial qualification for sale or rent of the residential dwelling unit. Qualifying households are those who earn less than one hundred twenty percent (120%) of the Area Median Income for renters, and less than two hundred percent (200%) of the

Area Median Income for ownership, as determined annually by the Department of Housing and Urban Development (HUD) and adjusted for household sizes. Units that cost less than thirty percent (30%) of a qualifying household's gross monthly income are considered affordable. Costs include, but are not limited to, rent, mortgage payments, taxes, utilities, and insurance as applicable.

BE IT FURTHER RESOLVED, this approval is made based on the finding that the proposed amendment complies with the standards of Land Use Code Section 5-1802, Land Use Code Amendments, is consistent with Land Use Code Section 1-4, Purposes of the Land Use Code, and conforms with the requirements of the Colorado State Affordable Housing Fund.

DONE AND APPROVED by the Board of County Commissioners of San Miguel County, Colorado, on June 3, 2026.

**SAN MIGUEL COUNTY, COLORADO
BOARD OF COUNTY COMMISSIONERS**

By: Lance Waring
Lance Waring, Chair

Vote:	Lance Waring	x	Aye	Nay	Abstain	Absent
	Anne Brown	x	Aye	Nay	Abstain	Absent
	Galena Gleason	x	Aye	Nay	Abstain	Absent

ATTEST:

By: Carmen Warfield
Carmen Warfield, Chief Deputy Clerk

EXHIBIT A – Public Hearing Record

**EXHIBIT A
PUBLIC HEARING RECORD**

Board of County Commissioners

Application: Amendment to San Miguel County Land Use Code – Accelerated Housing Review

Date: June 3, 2026

1. San Miguel County Land Use Code (Adopted 11/30/90) with all amendments to date (By Reference Only)
2. San Miguel County Comprehensive Development Plan (Adopted 8/3/78) with all amendments to date (By Reference Only)
3. Memorandum to the Board of County Commissioners from Kaye Simonson, Planning Director, dated June 3, 2026
4. Draft BOCC Resolution #2026-22 Approving Amendments to the Land Use Code for Accelerated Housing Review
5. Draft Land Use Code Amendment – Accelerated Housing Review, Section 3-15 and related amendments (with CPC recommended changes)
6. Memorandum to the San Miguel County Planning Commission from Kaye Simonson, Planning Director, dated May 14, 2026
7. Draft Planning Commission minutes, May 14, 2026
8. Public Hearing Notice published in the Telluride Times, May 14, 2026

AGENCY COMMENTS

9. Email from Kaye Simonson, Planning Director to Referral Agencies dated April 8, 2026
10. Letter from Colorado Department of Local Affairs dated March 18, 2026

PUBLIC COMMENT

11. Email from Emily Masson received May 1, 2026
12. Email from Jolana Vankova received April 20, 2026
13. Email from Lauren Murray received May 1, 2026
14. Letter from Morgan Smith received May 5, 2026

15. Letter from Nick Farkouh, SSR, received May 1, 2026

16. Letter from Pam Bennett received May 7, 2026

17. Letter from Scott Bennett received May 7, 2026

18. Letter from Shellie Duplan, Aldasoro Ranch Homeowners Company, received
May 7, 2026

19. Email from Virginia Lucarelli received May 5, 2026

20. Email from Amy Levek, SSR, received May 12, 2026

21. Letter from Elaine Demas, SSR, received May 11, 2026

22. Letter from Lauren Murray received May 8, 2026

23. Email from Nick Farkouh, SSR, received May 11, 2026

24. Letter from Tony Daranyi, SSR, received May 8, 2026

OTHER – None